



BELIZE TAX SERVICE DEPARTMENT

"TOGETHER WE BUILD OUR COUNTRY. YOUR CONTRIBUTION, OUR DEVELOPMENT"

COMMON REPORTING STANDARDS AND THE AEOI PORTAL

ABBREVIATIONS:

- **AEOI** Automatic Exchange of Information
- **BCAA** Bilateral Competent Authority Agreement
- **BIAC** Business and Industry Advisory Committee to the OECD
- **BTSD** Belize Tax Service Department
- **CA** Competent Authority
- **CRS** Common Reporting Standard
- **DCA** Designated Competent Authority
- **FATF** Financial Action Task Force
- **FATCA** Foreign Account Tax Compliance Act
- **FI** Financial Institution
- **GINN** Global Intermediary Identification Number
- **IFSC** International Financial Services Commission
- **OECD** Organization for Economic Co-operation and Development
- **MAATMA** Mutual Administrative Assistance in Tax Matters Act
- **MCAA** Multilateral Competent Authority Agreement
- **RFI** Reportable Financial Institution
- **SI** Statutory Instrument
- **TIN** Tax Identification Number

1. What is CRS and what is the importance of CRS in AEOI?

The Common Reporting Standard (CRS) was developed by the Organization for Economic Co-operation and Development (OECD) in response to requests made by the G20. It is the global standard for the automatic exchange of financial account information for tax purposes. In other words, CRS is the gathering and reporting of financial information by financial institutions in participating countries, to help combat tax evasion and protect the integrity of tax systems in the various jurisdictions.

2. Who is considered to be an FI?

In CRS, financial institution does not just mean banks. An FI could be a Custodial Institution, a Depository Institution, an Investment Entity, or a Specified Insurance Company.

3. Who should be registered for CRS?

You are required to be registered for CRS if you are consider to be a Custodial Institution, a Depository Institution, an Investment Entity, or a Specified Insurance Company.

4. Should an FI still be required to register for CRS even if there are no reportable accounts being held by the institution?

Yes, a financial institution is still required to be registered and is required to file a nil return annual on or before the due date.

5. Is an FI still required to file even if there are no reportable account?

Reporting FIs who hold no reportable accounts within a calendar year are required to file nil reports. Nil reports are completed by creating and submitting a filing summary on the AEOI portal.

6. How can a RFI gain access to the AEOI portal?

In order to gain access to the AEOI portal, RFI should be registered with BTSD and obtain a TIN. After TIN has been obtain, visit the Belize AEOI portal at <https://aeoi.bts.gov.bz/crsfatca/>.

Financial Institution are ask to provide Financial institution name, Institution type, GIIN (where applicable), TIN, Registered office address and Email address.

Where the FI has opted to use a primary User, they are required to provide name, email address, telephone number, digital copy of passport or Social Security card in .jpeg or .pdf only and a digital copy of authorization letter from company director or high-level manager in .jpeg/.pdf only.

7. Once an RFI is registered for CRS in the AEOI portal, can they ever be deregistered? If so, what is required?

In order to deactivate account, all filings must be completed to date. After CRS filing is completed, a formal request must be made to Mrs. Michelle Longsworth, Director General, BTSD stating the reason for requesting deregistration from the AEOI Portal. Along with the letter, you are also required to submit a copy of the Certificate of Discontinuance to the International Cooperation unit at internationalcompliance@bts.gov.bz.

8. How can an RFI update or change their name or contact information in the AEOI portal?

At this time, the system does not support name change in the AEOI portal however once documents are provided to BTSD, the name change has to take effect in our local database, RMS. The RFI would then request for deactivation of account in the AEOI portal and be required to complete the enrolment process again.

9. What is the due date for CRS?

The due date for CRS is March 31st of every year.

10. Are there penalties for late filing?

Yes, reporting financial institutions who fail to file an information return in the time and manner required in accordance with the Mutual Administrative Assistnace in tax Matters Act, Rev Ed 2020 are liable to an administrative penalty of \$10,000.

CONTACT INFORMATION

International Cooperation Unit
internationalcompliance@bts.gov.bz

Telephone Numbers: 222-4776
Ext. 416

AEOI Portal Support
aeoihelpdesk@bts.gov.bz

Mrs. Lisa Marie Clare, Deputy
Director General Policy and
Programs, Belize Tax Service
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Ms. Marlene Castillo, Tax Officer III,
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Ext. 419



Belize Tax Service:

<https://bts.gov.bz/>

AEOI Portal:

<https://aeoi.bts.gov.bz/crsfatca/>

11. What is meant by a valid self certification?

Valid self-certification is where the financial institution validates the identification of the account holder using proper documentation and evidence. The information provided by the account holder for example, to validate their name and date of birth could be a government issued photo ID and to validate the address/ jurisdiction a utility bill may be presented.

12. What is considered a high value account?

A high value account is a preexisting Individual Account with an aggregate balance or value that exceeds USD1 000 000 as of 31 December 2016 or 31 December of any subsequent year.

13. What is an undocumented account?

Where a "hold mail" instruction or "in-care-of" address is discovered in the electronic search and no other address and none of the other indicia listed in subparagraph B(2)(a) through (e) are identified for the Account Holder, the Reporting Financial Institution must, in the order most appropriate to the circumstances, apply the paper record search described in subparagraph C(2), or seek to obtain from the Account Holder a self-certification or Documentary Evidence to establish the residence(s) for tax purposes of such Account Holder. If the paper search fails to establish an indicium and the attempt to obtain the self-certification or Documentary Evidence is not successful, the Reporting Financial Institution must report the account as an undocumented account.

14. Who should the RFI's contact for support in the AEOI portal?

Where an RFI requires assistance with the AEOI portal they may contact the International Cooperation Unit at aeoihelpdesk@bts.gov.bz or the email address of one of the contact persons to the left.

15. What are administrative penalties?

Administrative penalties are levied on Reportable Financial Institution that do not conduct their due diligence procedures in accordance with the Mutual Administrative Assistance in Tax Matters Act, Rev Ed 2020. The administrative penalties include the following:

(1) Every reporting financial institution who fails to file an information return in the time and manner required under this Act or the regulations made thereunder is liable to a penalty of \$10,000 for each such failure.

(2) Every reporting financial institution who fails to conduct the due diligence procedures required under this Act or the regulations made thereunder is liable to a penalty of \$10,000 for each such failure.

(3) Every reporting financial institution who fails to retain for the statutory period the information obtained in accordance with this Act or the regulations made thereunder or the record of the steps taken to comply with this Act or the regulations in respect of a financial account is liable to a penalty of \$10,000 for each such failure, unless the reporting financial institution establishes that it made a reasonable effort to retain the information or record for the statutory period.

(4) Every person who knowingly and willfully makes a false statement or omission in respect of any material particular or consequential information required to be included on an information return or self-certification under this Act or the regulations made thereunder, is liable to a penalty of \$5,000 for each such false or deceptive return or self-certification.

THANK YOU FOR YOUR CONTINUED SUPPORT!!